

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

=====X
DAMIAN BULLOCK,

Plaintiff,

-against-

THE CITY OF NEW YORK and DETECTIVE RENE
CASTELLANO,

Defendants.
=====X

SUMMONS

Index No.:

Filed On:

Plaintiff designates Kings
County as the place of
trial

Basis of Venue:

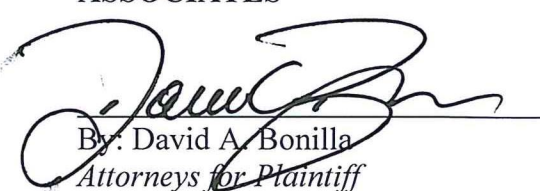
Plaintiff's residence

TO THE ABOVE NAMED DEFENDANT(S):

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or if the complaint is not served with this summons, to serve a notice of appearance, on the plaintiff's attorney, within twenty (20) days after the service of this summons, exclusive of the day of service (or within thirty (30) days after service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Brooklyn, New York
November 26, 2019

**DAVID J. HERNANDEZ &
ASSOCIATES**


By: David A. Bonilla

Attorneys for Plaintiff

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Defendant's Address:

THE CITY OF NEW YORK
100 Church Street
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SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

=====X
DAMIAN BULLOCK,

Plaintiff,

**VERIFIED
COMPLAINT**

-against-

Index No.:

THE CITY OF NEW YORK and DETECTIVE RENE CASTELLANO,

Defendants.
=====X

Plaintiff, DAMIAN BULLOCK, for his complaint, by his attorneys, DAVID J. HERNANDEZ & ASSOCIATES, upon information and belief, respectfully alleges as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action brought to vindicate Plaintiff's rights secured to him under the Fourth, Fifth, Sixth and Fourteenth Amendments of the Constitution of the United States, through the Civil Rights Act of 1871, *as amended*, codified as 42 U.S.C. § 1983; under the Civil Rights Act of 1870, *as amended*, codified as 42 U.S.C. § 1981; and under the Civil Rights Attorney's Fees Award Act of 1976, *as amended*, codified as 42 U.S.C. § 1988.

2. On or about May 12, 2018, at approximately 10:30 P.M., the rights of Plaintiff DAMIAN BULLOCK (hereinafter "DAMIAN") were violated under color of state law by employees of Defendant, THE CITY OF NEW YORK (hereinafter "CITY"), including but not limited to Defendant, DETECTIVE RENE CASTELLANO.

3. Defendants' actions arose from i) their perception of DAMIAN's race, rather than any indication of criminal conduct on his part, ii) from a need to cover-up their unconstitutional racial-profiling of DAMIAN, and iii) from a need to meet productivity goals (arrest quotas), which are prevalent throughout the New York City Police Department.

4. As a result of the violation of his constitutional rights, DAMIAN suffered

physical and mental injuries. Accordingly, DAMIAN seeks an award of compensatory and punitive damages and attorneys' fees.

PARTIES

5. DAMIAN is an African-American male and, at all times relevant hereto, resided in the County of Kings, City and State of New York.

6. Defendant CITY is a municipal corporation, incorporated pursuant to the laws of the State of New York, which operates the New York City Police Department (hereinafter "NYPD"), and as such is the public employer of the defendant officers herein. Defendant CITY assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the NYPD.

7. Defendant DETECTIVE RENE CASTELLANO (hereinafter "CASTELLANO") is an NYPD police officer, and at all times relevant hereto, acted in that capacity as agent, servant, and/or employee of Defendant CITY.

8. At all times relevant hereto, Defendants were acting under the color of state and local law. Defendants are sued in their individual and official capacities. At all times relevant hereto, Defendant CITY was responsible for making and enforcing the policies of NYPD and was acting under the color of law, to wit, under the color of statutes, ordinances, regulations, policies, customs and usages of the State of New York and/or the City of New York.

FACTS

9. On or about May 12, 2018, at approximately 10:30 P.M., NYPD police officers unlawfully entered DAMIAN'S residence located at 54 Fountain, Brooklyn, New York 11208.

10. The police officers entered DAMIAN'S house without showing a warrant to search the premises.

11. The NYPD police officers, without warning, announcement, or provocation, and without proper warrant, probable cause or legal cause, excuse or justification, arrested DAMIAN's family. This arrest was unlawful, as it was executed without warrant, probable or legal cause, excuse or justification.

12. DAMIAN's family was taken to New York City Police Department – 75th Precinct at 1000 Sutter Avenue, Brooklyn, New York 11208. The NYPD police officers informed DAMIAN that if he wants his family to be released from custody, he must turn himself over to the police.

13. Upon arriving at the 75th precinct the police officers, without warning, announcement, or provocation, and without proper warrant, probable cause or legal cause, excuse or justification, arrested DAMIAN and released his family from the back door of the New York City Police Department – 75th Precinct.

14. On May 13, 2018, DAMIAN was arraigned, charged under New York Penal Law §§ 220.03, 220.50(2), 221.05 and 145.00(1).

15. On December 6, 2018, by Motion of the Kings District Attorney's Office, all charges against DAMIAN stemming from his May 12, 2018 false and unlawful arrest were dismissed by the Hon. Edwin Novillo of the Kings Criminal Supreme Court. (Annexed hereto as *Exhibit 1* is a copy of DAMIAN's Certificate of Disposition for his May 12, 2018 arrest.). DAMIAN was released from his unlawful imprisonment on or about May 16, 2018 on bail.

16. As a consequence of Defendants' violations of the rights secured to DAMIAN under the Fourth, Fifth, Sixth and Fourteenth Amendments of the Constitution of the United States, DAMIAN served approximately four (4) days of imprisonment on Riker's Island (May 13, 2018 through May 16, 2018).

17. Thus, by reason of the aforesaid constitutional deprivation perpetrated by Defendants herein, DAMIAN was caused to suffer and endure loss of liberty, mental anguish, emotional distress, shame, humiliation, indignity and damage to reputation.

FIRST CAUSE OF ACTION THROUGH 42 U.S.C. § 1983
DEPRIVATION OF RIGHTS SECURED UNDER THE CONSTITUTION OF THE
UNITED STATES

18. DAMIAN incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

19. Defendants, under color of state and/or local law, subjected DAMIAN to the foregoing acts without due process of law and in violation of the Fourth, Fifth, Sixth and Fourteenth Amendments of the Constitution of the United States, through 42 U.S.C. § 1983, thereby depriving DAMIAN of his rights, privileges and immunities, including, without limitation, deprivation of the following constitutional rights:

- a.) Freedom from unreasonable seizures of their person;
- b.) Freedom from arrest without probable cause;
- c.) Freedom from false imprisonment, meaning wrongful detention without good faith, reasonable suspicion or legal justification, and of which DAMIAN was aware and did not consent;
- d.) Freedom from the lodging of false charges against him by police officers;
- e.) Freedom from having police officers fabricate evidence against him;
- f.) Freedom from malicious prosecution by police, that being prosecution without probable cause that is instituted with malice and that ultimately terminated in DAMIAN's favor, in contravention of the Fourth Amendment's guarantee of freedom from unreasonable seizures; the Fifth Amendment's guarantee that

no individual's freedom shall be deprived without due process of law; and the Fourteenth Amendment's guarantee of substantive and procedural due process;

g.) The enjoyment of equal protection, privileges and immunities under the laws.

20. Defendants' deprivations of DAMIAN's constitutional rights, secured to DAMIAN by the Fourth, Fifth, Sixth and Fourteenth Amendments to the United States Constitution, caused DAMIAN to suffer and endure loss of liberty, mental anguish, emotional distress, shame, humiliation, indignity and damage to reputation.

SECOND CAUSE OF ACTION THROUGH 42 U.S.C. § 1983
SUPERVISORY LIABILITY FOR DEPRIVATION OF RIGHTS SECURED
UNDER THE CONSTITUTION OF THE UNITED STATES

21. DAMIAN incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

22. By failing to remedy the wrongs committed by his or her subordinates, in failing to properly train, screen, supervise, or discipline his or her subordinates, and by personally participating in the constitutional torts described above, supervisory officer Defendants CASTELLANO caused damage and injury in violation of DAMIAN's rights guaranteed under the United States Constitution, including its Fourth, Fifth and Fourteenth Amendments, through 42 U.S.C. § 1983.

23. Defendants' deprivations of DAMIAN's constitutional rights, secured to DAMIAN by the Fourth, Fifth, Sixth and Fourteenth Amendments to the United States Constitution, caused DAMIAN to suffer and endure loss of liberty, mental anguish, emotional distress, shame, humiliation, indignity and damage to reputation.

THIRD CAUSE OF ACTION THROUGH 42 U.S.C. § 1983
MONELL CLAIM AGAINST DEFENDANT CITY FOR DEPRIVATION OF RIGHTS

SECURED UNDER THE CONSTITUTION OF THE UNITED STATES

24. DAMIAN incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

25. All of the acts by the named Defendant police officers described above were carried out pursuant to overlapping policies and practices of Defendant CITY which were in existence at the time of the conduct alleged herein and were engaged in with the full knowledge, consent, and cooperation and under the supervisory authority of the defendant CITY and its agency, the NYPD.

26. Defendant CITY and the NYPD, by their policy-making agents, servants and employees, authorized, sanctioned and/or ratified the individual police defendants' wrongful acts; and/or failed to prevent or stop those acts; and/or allowed or encouraged those acts to continue.

27. The acts complained of were carried out by the aforementioned individual Defendants in their capacities as police officers and officials pursuant to *de facto* customs, policies, usages, practices, procedures and rules of the CITY and the NYPD, all under the supervision of ranking officers of the NYPD.

28. The aforementioned *de facto* customs, practices, procedures and rules of the CITY and the NYPD include, but are not limited to, the following unconstitutional practices:

- a.) Racially profiling minority individuals, and more specifically, African-American individuals, like DAMIAN;
- b.) Falsely swearing out criminal complaints, and/or lying and committing perjury during sworn testimony;
- c.) Retaliation against officers who speak out about the aforesaid customs and

policies;

d.) Deliberate indifference to the rights of persons with whom police come into contact.

29. **Racial Profiling.** The existence of the aforesaid unconstitutional custom, practice, procedure and rule of the CITY and the NYPD as to racial profiling of minority individuals by NYPD Officers is evidenced by the following:

a. According to a study conducted by the Center for Constitutional Rights, from 2005 through 2008, approximately eighty (80) percent of all stops conducted by NYPD Officers were of Blacks and Latinos, which comprise merely twenty-five (25) and twenty-eight (28) percent of New York City's total population.ⁱ Only ten (10) percent of stops conducted by NYPD Officers were of Whites, which comprise forty-four (44) percent of New York City's total population.ⁱⁱ The Center concluded that:

data provided by the NYPD plainly demonstrate Black and Latino New Yorkers have a greater likelihood of being stopped-and-frisked by NYPD officers at a rate significantly disproportionate to that of White New Yorkers. That NYPD officers use physical force during stops of Blacks and Latinos at an exceedingly disproportionate rate compared to Whites who are stopped, and that this disparity exists despite corresponding rates of arrest and weapons or contraband yield across racial lines, further supports claims that the NYPD is engaged in racially biased stop-and-frisk practices.ⁱⁱⁱ

b. The above findings are confirmed by reports made by numerous Black NYPD Officers, who state that, when off-duty and not in uniform, Black Police Officers are victims of the same racial profiling to which New York's minorities are frequently subjected. As explained in an article published by Reuters:

Reuters interviewed 25 African-American male officers on the NYPD, 15 of whom are retired and 10 of whom are still serving. All but one said that, when off duty and out of uniform, they had been victims of racial profiling, which refers to using race or ethnicity as grounds for suspecting someone of having committed a crime.

The officers said this included being pulled over for no reason, having their heads slammed against their cars, getting guns brandished in their faces, being thrown into prison vans and experiencing stop and frisks while shopping. The majority of the officers said they had been pulled over multiple times while driving. Five had guns pulled on them.^{iv}

30. **Falsely Swearing Out Criminal Complaints/Perjury.** According to the Mollen Commission, police perjury and falsification of official records is probably the most common form of police corruption facing the criminal justice system. According to the Commission:

Regardless of the motives behind police falsifications, what is particularly troublesome about this practice is that it is widely tolerated by corrupt and honest officers alike, as well as their supervisors. Corrupt and honest officers told us that their supervisors knew or should have known about falsified versions of searches and arrests and never questioned them.^v

[...]

What breeds this tolerance is a deep-rooted perception among many officers of all ranks within the Department that nothing is really wrong with compromising facts to fight crime in the real world. Simply put, despite the devastating consequences of police falsifications, there is a persistent belief among many officers that it is necessary and justified, even if unlawful. As one dedicated officer put it, police officers often view falsification as, to use his words, “doing God’s work” – doing whatever it takes to get a suspected criminal off the streets. This attitude is so entrenched, especially in high-crime precincts, that when investigators confronted one recently arrested officer with evidence of perjury, he asked in disbelief, “What’s wrong with that? They’re guilty.”^{vi}

The Commission’s report was echoed by the Honorable District Court Judge

Weinstein, writing for the Eastern District of New York in *Colon v. City of New York*, Nos.: 09-CV-8, 09-CV-9, 2009 WL 4263362 (E.D.N.Y.). In an Order dated November 25, 2009, which denied the CITY's motion to dismiss on *Iqbal/Twombly* grounds, wherein the police officers at issue were fired and prosecuted for falsifying evidence in a purported buy-and-bust operation, Judge Weinstein wrote:

Informal inquiry by the court and among the judges of this court, as well as knowledge of cases in other federal and state courts, has revealed anecdotal evidence of repeated, widespread falsification by arresting police officer[s] of the New York City Police Department. Despite numerous inquiries by commissions and strong reported efforts by the present administration – through selection of candidates for the police force stressing academic and other qualifications, serious training to avoid constitutional violations, and strong disciplinary action within the department – there is some evidence of an attitude among officers that is sufficiently widespread to constitute a custom or policy by the city approving illegal conduct of the kind now charged. *Colon v. City of New York*, Nos.: 09-CV-8, 09-CV-9, 2009 WL 4263362 *2 (E.D.N.Y. 2009).

Former Police Commissioner RAYMOND KELLY, upon hearing of Judge Weinstein's Order, particularly the language regarding the frequency with which Police Officers lie under oath, acknowledged that "When it happens, it's not for personal gain. It's more for convenience." vii

The existence of the aforesaid unconstitutional custom, practice, procedure and rule of the CITY and the NYPD as to falsely swearing out criminal complaints, and/or lying and committing perjury during sworn testimony in order to a) cover up, hide, mask or justify unconstitutional action; and/or b) to meet productivity goals (arrest quotas), may be inferred from repeated occurrences of similar wrongful conduct, which is documented by the following:

- a) Cover Up, Hide, Mask or Justify Unconstitutional Action.
- i. *Stevenson v. Oldson Ajesulas*, 14-CV-3144 (E.D.N.Y.) (P.O. OLDSON AJESULAS is sued in his individual and official capacities for the false arrest and false imprisonment of Plaintiff therein, and for providing false information to the Queens County District Attorney's Office in an effort to institute a malicious prosecution against the Plaintiff therein;
 - ii. *Long v. City of New York*, 09-CV-9216 (AKH) (S.D.N.Y.) (officer who purposefully swore out a false complaint and used excessive force is convicted of falsifying police records);
 - iii. *Taylor-Mickens v. City of New York*, 09 Civ. 7923 (RWS) (S.D.N.Y.) (police officers at the 24th Precinct issue four summonses to a woman in retaliation for her lodging a complaint with the Civilian Complaint Review Board at the precinct);
 - iv. *Callaghan v. City of New York*, 07 Civ. 9611 (PKC) (S.D.N.Y.) (officers accused of falsifying evidence and retaliatory arrests of bicyclists engaged in expressive conduct, *to wit*, riding in Critical Mass bicycle rides after the 2004 Republican National Convention);^{viii}
 - v. *Kaufman v. City of New York*, No.: 87 Civ. 4492 (RO), 1992 WL 247039 (S.D.N.Y. 1992) (bystander arrested for observing an unlawful arrest in public, requesting the officer's badge number, and telling the officer that he planned to file a report about the arrest).
 - vi. On August 26, 2013, The Bronx District Attorney's Office issued a press release indicating that New York City Police Officer Michael Ackermann was charged by a grand jury with Falsifying Business Records in the First and Second Degrees, Tampering with Public Records in the First and Second Degrees, Offering a False Instrument for Filing in the First and Second Degrees, Official Misconduct, and Making a Punishable False Written Statement. The charges against Officer Ackermann stemmed from his August 4, 2012 arrest of a New York Times photographer. Officer Ackermann, in justifying the arrest,

indicated that the photographer flashed his camera in Officer Ackermann's face while Officer Ackermann attempted to arrest another individual. However, an investigation into the incident determined that Officer Ackerman's story was a fabrication, as the camera used by the photographer did not have a flash device.

- vii. In early 2010, the CITY settled a civil rights lawsuit, wherein NYPD Officer Sean Spencer falsely arrested and accused a 41-year old woman of prostitution, for \$35,000. The CITY's attorney in the lawsuit admitted that "Officer Spencer falsely reported to the assistant district attorney that he saw [the plaintiff] beckon to three male passersby and that he was aware that plaintiff was previously arrested for [prostitution] when the plaintiff had never been arrested for this offense."^{ix}

b.) Meet productivity goals (arrest quotas).

- i. Former NYPD narcotics Detective STEPHEN ANDERSON, testifying during the corruption trial of Brooklyn South narcotics Detective Jason Arbeeney, stated in Brooklyn Supreme Court that it was common practice within the NYPD to fabricate drug charges against innocent people in order to meet arrest quotas. Said Detective ANDERSON: "As a detective, you still have a number to reach while you are in the narcotics division."^x
- ii. *Floyd v. City of New York*, No.: 08 Civ. 1034 (SAS), 959 F.Supp.2d 540, 602 (S.D.N.Y. 2013) (Judge Shira A. Schiendlin stated that "imposing numerical performance goals for enforcement activities, without providing effective safeguards to ensure the activities are legally justified, could result in an officer taking enforcement action for the purpose of meeting a performance goal rather than because a violation of the law has occurred.")
- iii. *Bryant v. City of New York*, Index No.: 22011/2007 (Sup. Ct., Kings Co.) (jury declares that NYPD officers acted pursuant to a City policy regarding the number of arrests officers were expected to make that

- violated plaintiffs constitutional rights and contributed to her arrest);^{xi}
- iv. *McMillan v. City of New York*, 04-CV-3990 (FB) (RML) (E.D.N.Y.) (officers fabricated evidence and used excessive force against an African-American man in Kings County and initiated drug charges against him, despite an absence of any quantum of suspicion);
 - v. *Avent v. City of New York*, 04-CV-2451 (CBA) (CLP) (E.D.N.Y.) (same);
 - vi. *Smith v. City of New York*, 04-CV-1045 (RRM) (JMA) (E.D.N.Y.) (same);
 - vii. *Richardson v. City of New York*, No.: 02-CV-3651 (JG), 2006 WL 2792768 (E.D.N.Y. 2006) (officers fabricated evidence, including knowingly false sworn complaints, and used excessive force against an African-American man in Kings County and initiated drug charges against him, despite an absence of any quantum of suspicion);
 - viii. *Taylor v. City of New York*, 01-CV-5750 (ILG) (MDG) (E.D.N.Y.) (same as *Richardson*, paragraph O above, except without the excessive force; judge at the criminal trial acquitting Mr. Taylor noted, on the record, that he had “significant doubt” about the truthfulness of the officers who testified);
 - ix. In December of 2009, two (2) officers from the 81st Precinct in Brooklyn arrested and falsely swore out charges against an undercover officer from the Internal Affairs Bureau. As explained in an article in the New York Post:

The officers were snared in a sting by Internal Affairs in December when they were told to keep an eye out for people selling untaxed cigarettes in their precinct.

Sometime later, they saw a man hanging out on a corner in the neighborhood and found that he was carrying packs of knock-off smokes.

[Sgt. Raymond] Stukes, 45, and [Officer Hector] Tirado, 30, cuffed him, then claimed that they had seen him selling the bogus butts to two people,

according to sources.

Little did the hapless cops know that the man in their custody was an undercover corruption investigator and that the whole incident was caught on video.

To complete the ruse, the undercover cop was processed at the station so as to not tip off Stukes and Tirado about the sting . . .

[P]olice sources said [this action] stem[s] from precinct commanders caving to the pressure of top brass to make themselves look better.

“There’s pressure on the cops from the bosses and they’re getting pressured from headquarters,” a police source told The Post.^{xii} These officers were indicted for felony perjury, filing a false report and filing a false instrument.^{xiii}

- x. According to the Police Reform Organizing Project, in its short-report titled *Working Towards a More Safe and Fair City: Abolishing Quotas and Involving Communities*, “Promotion or job security in the [NYPD] largely depends on the number of arrests made and tickets issued.”

The report continues:

The NYPD has continuously denied the existence of quotas and asserts that it relies only on a set of ‘productivity goals’. These ‘productivity goals’ are a euphemism for a “quota system”. In 2010, the New York State Legislature enacted the Quota Law, which outlawed the use of a quota system for summonses, tickets and stop-and-frisk encounters and prohibited the use of quotas for performance evaluations. Yet, the NYPD leadership proceeded with a numbers-focused evaluation process of officers.

[. . .]

To meet this quota requirement many officers engage in indiscriminate ticketing, arrests, stops and other harassing techniques . . . The easiest people for officers to target to reach their quota requirement are from the most vulnerable communities in New York City: low-income African-American and Latinos, Muslims, sex workers, street vendors, people with mental illness, homeless people and LGBTQ (Lesbian, Gay, Bi-sexual, Transgender and Queer) individuals.^{xiv}

31. **Retaliation against officers who speak out about aforesaid customs and policies.** Furthermore, there is a widespread, egregious custom and practice within the NYPD of retaliation against Officers who speak out against the aforesaid unconstitutional customs of racially profiling minorities and falsely swearing out criminal complaints, which is documented by the following:

- a.) *Schoolcraft v. City of New York*, No. 10 Civ. 6005 (RWS), 2011 WL 175863 (S.D.N.Y. 2011) (police officer who expose a precinct's policies and practices of, *inter alia*, falsifying evidence and suborning perjury alleges he was arrested and committed to a psychiatric facility in retaliation for exposing said policies and practices to the press);
- b.) *Carmody v. City of New York*, No.: 05 Civ. 8084 (HB), 2006 WL 3317026 (S.D.N.Y. 2006) (police officer alleges that he was terminated for cooperating with another officer's claims of a hostile work environment);
- c.) *Powers v. City of New York*, No.: 04-CV-02246 (NGG), 2007 WL 1026407 (S.D.N.Y. 2007) (police officer alleges unlawful retaliation by other police officers after testifying about corruption within the NYPD);
- d.) *Nonnemann v. City of New York*, No.: 02 Civ. 10131 (JSR) (AJP), 2004 WL 1119648 (S.D.N.Y. 2004) (former NYPD lieutenant alleging retaliatory demotion and early retirement after reporting a fellow officer to IAB and CCRB for the officer's unjustified, racially-motivated stop-and-frisk of a group of Hispanic youth);
- e.) *Barry v. New York City Police Department*, No.: 01 Civ. 10627 *2 (CBM), 2004 WL 758299 (S.D.N.Y. 2004) (triable issue of fact where NYPD sergeant

alleged retaliatory demotion and disciplinary charges in response to sergeant's allegations of corruption within her unit and alleged that the NYPD had an "unwritten but pervasive custom of punishing officers who speak out about police misconduct and encouraging, if not facilitating, silence among officers");

- f.) *Walton v. Safir*, No.: 99 Civ. 4430 (AKH), 122 F.Supp.2d 466 (S.D.N.Y. 2000) (factual findings after trial that a 12-year veteran of NYPD was terminated in retaliation for criticizing the racially-motivated policies of the NYPD's Street Crime Unit and for alleging that such policies led to the NYPD shooting death of Amadou Diallo);
- g.) *White-Ruiz v. City of New York*, No.: 93 Civ. 7233 (DLC) (MHD), 983 F. Supp. 365, 380 (S.D.N.Y. 1997) (holding that the NYPD had an "unwritten policy or practice of encouraging or at least tolerating a pattern of harassment directed at officers who exposed instances of police corruption");
- h.) *Ariza v. City of New York*, No.: CV-93-5287, 1996 WL 118535 (E.D.N.Y.) (police officer alleges retaliatory duty assignments and harassment in response to his allegations about a racially-discriminatory workplace; on motion for summary judgment, the Court held that the police officer had established proof of both a widespread usage of a policy to retaliate against police officers who expose police misconduct and a failure to train in the police department);

32. **Deliberate indifference.** During all times material to this complaint, defendant, CITY, through its policymaking officials in the NYPD, owed a duty to the public at large and to plaintiff to implement policies, procedures, customs, and practices sufficient to prevent, deter, and avoid conduct by their subordinates that would result in the violation of the aforementioned constitutional rights of criminal suspects or defendants and of other members of the public.

a. The policymakers knowingly and intentionally breached, or were deliberately indifferent to, this duty.

b. At the same time as NYPD policymaking officials were deliberately indifferent to constitutional violations by their employees, these officials created substantial incentives for their employees to commit such constitutional violations, by pressuring police officers to "close" cases through arrests, indictments, and convictions.

c. The aforesaid deliberate or de facto policies, procedures, regulations, practices and/or customs (including the failure to properly instruct, train, supervise, and/or discipline employees) were implemented or tolerated by policymaking officials for defendant, CITY – including but not limited to the Police Commissioner – who knew, or should have known:

- i. To a moral certainty that such policies, procedures, regulations, practices, and/or customs concern issues that regularly arise in the investigation of criminal cases;
- ii. That such issues present NYPD employees with difficult choices of the sort that instruction, training, supervision, and discipline will make less difficult;
- iii. That NYPD employees facing such issues have strong incentives to make the wrong choices, especially given the pressure placed on NYPD employees to make arrests, close cases, and secure indictments and convictions;
- iv. That the wrong choice by NYPD employees concerning such issues will frequently cause the deprivation of the constitutional rights of an accused person and causes him constitutional injury; and
- v. That NYPD employees had a history of making wrong choices in such matters.

d. At the time of plaintiff's arrest and prosecution, NYPD policymaking officials were on notice of the risk of misconduct by NYPD employees that would violate the constitutional obligations.

e. Policymaking officials were on notice based in part on numerous decisions of the United States Supreme Court, the United States Court of Appeals for the Second Circuit, the New York Court of Appeals, and the New York Appellate Division discussing the difficult issues that regularly arise for police officers during lineup procedures and other phases of criminal investigations.

f. Policymaking officials were also on notice based on the inherent obviousness of the need to train, supervise, and discipline police officers with respect to their constitutional obligations to counteract the pressure on such officers to "close" cases and to obtain arrests and convictions.

33. That on May 12, 2018, DAMIAN was arrested as a result and consequence of the above-described unlawful *de facto* policies and/or well-settled and widespread customs.

34. The existence of the above-described unlawful *de facto* policies and/or well-

settled and widespread customs and practices is known to, encouraged and/or condoned by supervisory and policy-making officers and officials of the NYPD and the CITY.

35. The actions of the individual police Defendants resulted from and were taken pursuant to the above-mentioned *de facto* policies and/or well-settled and widespread customs and practices of the CITY, which are implemented by members of the NYPD, of engaging in systematic and ubiquitous racial-profiling, as well as perjury, both oral and written, to cover-up federal law violations committed against civilians by either themselves or their fellow officers, supervisors and/or subordinates, or to meet arrest quotas. They do so with the knowledge and approval of their supervisors, commanders who all: (i) tacitly accept and encourage a code of silence wherein police officers refuse to report other officers' misconduct or tell false and/or incomplete stories, *inter alia*, in sworn testimony, official reports, in statements to the CCRB and the Internal Affairs Bureau ("IAB"), and in public statements designed to cover for and/or falsely exonerate accused police officers, and to meet arrest quotas; and (ii) encourage and, in the absence of video evidence blatantly exposing the officers' perjury, fail to discipline officers for testifying and/or fabricating false evidence to initiate and continue the malicious prosecution of civilians, as was done to DAMIAN.

36. All of the foregoing acts by Defendants deprived DAMIAN of federally protected rights, including, but not limited to:

- a.) Freedom from unreasonable seizures of their person;
- b.) Freedom from arrest without probable cause;
- c.) Freedom from false imprisonment, meaning wrongful detention without good faith, reasonable suspicion or legal justification, and of which DAMIAN was aware and did not consent;
- d.) Freedom from the lodging of false charges against him by police officers;
- e.) Freedom from having police officers fabricate evidence against him;
- f.) Freedom from malicious prosecution by police, that being prosecution without probable cause that is instituted with malice and that ultimately terminated in DAMIAN'S favor, in contravention of the Fourth Amendment's guarantee of

freedom from unreasonable seizures; the Fifth Amendment's guarantee that no individual's freedom shall be deprived without due process of law; and the Fourteenth Amendment's guarantee of substantive and procedural due process;

g.) The enjoyment of equal protection, privileges and immunities under the laws.

37. Defendant CITY knew or should have known that the acts alleged herein would deprive DAMIAN of his rights, in violation of the Fourth, Fifth, Sixth and Fourteenth Amendments to the United States Constitution.

38. Defendant CITY is directly liable and responsible for the acts of the individual police Defendants because it repeatedly and knowingly failed to properly supervise, train, instruct, and discipline them and because it repeatedly and knowingly failed to enforce the rules and regulation of the CITY and NYPD, and to require compliance with the Constitution and laws of the United States.

39. Despite knowledge of such unlawful *de facto* policies, practices and/or customs, these supervisory and policy-making officers and officials of the NYPD and the CITY have not taken steps to terminate these policies, practices and/or customs, do not discipline individuals who engage in such policies, practices and/or customs, or otherwise properly train police officers with regard to the constitutional and statutory limits on the exercise of their authority, and instead sanction and ratify these policies, practices and/or customs through their active encouragement of, deliberate indifference to and/or reckless disregard of the effect of said policies, practices and/or customs upon the constitutional rights of persons in the City of New York.

40. The aforementioned policies, practices and/or customs of failing to supervise,

train, instruct and discipline police officers and encouraging their misconduct are evidenced by the extensive police misconduct detailed herein. Specifically, pursuant to the aforementioned policies, practices and/or customs, the Defendant Officers felt empowered to execute a warrantless, unreasonable and unjustified arrest of DAMIAN, without probable cause, and subsequently, to swear to a false story to cover up their blatant violation of DAMIAN's constitutional rights, and to meet arrest quotas.

41. DAMIAN's injuries were a direct and proximate result of Defendant CITY and the NYPD's wrongful *de facto* policies and/or well-settled and widespread customs and practices and of the knowing and repeated failure of Defendant CITY and the NYPD to properly supervise, train and discipline their police officers.

42. Defendants, collectively and individually, while acting under color of state law, acquiesced in a pattern of unconstitutional conduct by subordinate police officers and were directly responsible for the violation of DAMIAN's constitutional rights.

43. Defendants' deprivations of DAMIAN'S constitutional rights, secured to DAMIAN by the Fourth, Fifth, Sixth and Fourteenth Amendments to the United States Constitution, caused DAMIAN to suffer and endure loss of liberty, mental anguish, emotional distress, shame, humiliation, indignity and damage to reputation.

FOURTH CAUSE OF ACTION THROUGH TO 42 U.S.C. § 1983
FALSE ARREST IN CONTRAVENTION OF THE CONSTITUTION OF THE
UNITED STATES

44. DAMIAN incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

45. That Defendant police officers had neither valid evidence for the arrest of DAMIAN, nor proper warrant, probable or legal cause, excuse or justification to seize and detain

him.

46. That in detaining DAMIAN without a fair and reliable determination of probable cause, Defendant CITY abused its power and authority as a policymaker of the NYPD under the color of State and/or local law. It is alleged that CITY, via their agents, servants and employees routinely charged persons with crimes they did not commit. DAMIAN was but one of those persons.

47. As a result of the aforesaid conduct by Defendants, DAMIAN was subjected to an illegal, improper and false arrest by the Defendants and taken into custody and caused to be falsely imprisoned, detained and confined without any probable cause, privilege or consent.

48. That in detaining DAMIAN, Defendant Officers acted in their capacities as police officers, with the entire actual and/or apparent authority attendant thereto.

49. Defendants' deprivations of DAMIAN'S constitutional rights, secured to DAMIAN by the Fourth, Fifth, Sixth and Fourteenth Amendments to the United States Constitution, caused DAMIAN to suffer and endure loss of liberty, mental anguish, emotional distress, shame, humiliation, indignity and damage to reputation.

FIFTH CAUSE OF ACTION THROUGH 42 U.S.C. § 1983
MALICIOUS ABUSE OF PROCESS IN CONTRAVENTION OF THE CONSTITUTION
OF THE UNITED STATES

50. DAMIAN incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

51. Defendants, acting under color of state law, issued legal process to place DAMIAN under arrest, and to secure a conviction based on that arrest.

52. Defendants arrested DAMIAN, and defendant CASTELLANO falsely swore in the Criminal Complaint, in order to obtain a collateral objective outside the legitimate ends of the

legal process; namely, Defendants arrested DAMIAN in order to cover-up for their unconstitutional racial profiling of his person, and in order to meet arrest quotas; Defendant CASTELLANO falsely swore in the Criminal Complaint in an attempt to further cover-up his unconstitutional racial-profiling, as well as to meet arrest quotas.

53. Defendants acted with the intent to do harm to DAMIAN without excuse or justification.

54. This malicious abuse of process caused DAMIAN to incur special damages in the form of legal fees incurred.

55. Defendants' deprivations of DAMIAN'S constitutional rights, secured to DAMIAN by the Fourth, Fifth, Sixth and Fourteenth Amendments to the United States Constitution, caused DAMIAN to suffer and endure loss of liberty, mental anguish, emotional distress, shame, humiliation, indignity and damage to reputation.

SIXTH CAUSE OF ACTION THROUGH 42 U.S.C. § 1983
MALICIOUS PROSECUTION IN CONTRAVENTION OF THE CONSTITUTION OF
THE UNITED STATES

56. DAMIAN incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

57. Defendants, acting under color of state law, misrepresented and falsified evidence before the Kings County District Attorney. Defendants did not make a complete and full statement of facts to the Kings County District Attorney.

58. Defendant CASTELLANO, pursuant to *de facto* policies and/or well-settled and widespread customs and practices of Defendant CITY and its agency NYPD, falsely swore in the criminal complaint that he found three twists of crack cocaine under the dresser at DAMIAN's residence. Thus, Defendants were directly and actively involved in the initiation of criminal

proceedings against DAMIAN.

59. Defendants lacked probable cause to initiate criminal proceedings against DAMIAN.

60. Defendants acted with malice in initiating criminal proceedings against DAMIAN.

61. Defendants were directly and actively involved in the continuation of criminal proceedings against DAMIAN.

62. Defendants lacked probable cause to continue criminal proceedings against DAMIAN.

63. Defendants acted with malice in continuing criminal proceedings against DAMIAN.

64. Defendants misrepresented and falsified evidence throughout all phases of the criminal proceeding.

65. Notwithstanding the perjurious and fraudulent conduct of Defendants, the criminal proceedings were terminated in DAMIAN's favor on December 6, 2018, when, by motion of the Kings County District Attorney's Office, all charges against DAMIAN were dismissed.

66. Defendants' deprivations of DAMIAN'S constitutional rights, secured to DAMIAN by the Fourth, Fifth, Sixth and Fourteenth Amendments to the United States Constitution, caused DAMIAN to suffer and endure loss of liberty, mental anguish, emotional distress, shame, humiliation, indignity and damage to reputation.

SEVENTH CAUSE OF ACTION
DENIAL OF FAIR TRIAL IN CONTRAVENTION OF THE CONSTITUTION OF THE
UNITED STATES

67. DAMIAN incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

68. By fabricating evidence, Defendants violated DAMIAN's constitutional right to a fair trial.

69. Defendants were aware or should have been aware of the falsity of the information used to prosecute DAMIAN.

70. DAMIAN was remanded to Riker's Island for allegedly possessing controlled substance, criminally using drug paraphernalia, endangering the welfare of a child, unlawful possession of marijuana, and criminal mischief.

71. Defendants' deprivations of DAMIAN'S constitutional rights, secured to DAMIAN by the Fourth, Fifth, Sixth and Fourteenth Amendments to the United States Constitution, caused DAMIAN to suffer and endure loss of liberty, mental anguish, emotional distress, shame, humiliation, indignity and damage to reputation.

PUNITIVE DAMAGES

72. DAMIAN incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

73. The foregoing acts were done recklessly, intentionally, wantonly and with gross indifference to the rights of DAMIAN, thereby entitling DAMIAN to punitive and exemplary damages.

ATTORNEYS FEES AND COSTS UNDER 42 U.S.C. § 1988

74. DAMIAN incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

75. The foregoing events constitute violations of DAMIAN's statutory and

constitutional rights, thereby entitling him to attorney's fees, costs and disbursements as permitted by 28 U.S.C. § 1983.

INJURY AND DAMAGES

76. Defendants' deprivations of DAMIAN'S constitutional rights, secured to DAMIAN by the Fourth, Fifth, Sixth and Fourteenth Amendments to the United States Constitution, caused DAMIAN to suffer and endure loss of liberty, mental anguish, emotional distress, shame, humiliation, indignity and damage to reputation.

WHEREFORE, DAMIAN BULLOCK respectfully requests that judgment be entered:

- a.) Awarding DAMIAN compensatory damages in a full and fair sum to be determined by a jury;
- b.) Awarding DAMIAN punitive damages in an amount to be determined by a jury;
- c.) Awarding DAMIAN interest from May 12, 2018;
- d.) Awarding DAMIAN reasonable attorney's fees pursuant to 42 U.S.C. § 1988;
and
- e.) Granting such other and further relief that this Court may deem just and proper.

Dated: Brooklyn, New York
November 26, 2019

DAVID J. HERNANDEZ & ASSOCIATES


David A. Bonilla
Attorneys for Plaintiff
26 Court Street, Suite 2707

Brooklyn, NY 11242

ⁱ Center for Constitutional Rights, *Racial Disparity in NYPD Stop-and-Frisks*, January 15, 2009, available at, http://ccrjustice.org/sites/default/files/assets/Report-CCR-NYPD-Stop-and-Frisk_3.pdf.

ⁱⁱ *Id.*

ⁱⁱⁱ *Id.*

^{iv} Michelle Conlin, *Off duty, black cops in New York feel threat from fellow police*, Reuters, December 23, 2014, available at, <http://www.reuters.com/article/2014/12/23/us-usa-police-nypd-race-insight-idUSKBN0K11EV20141223>.

^v Mollen Commission Report, p. 36.

^{vi} *Id.* at pp. 40-41.

^{vii} Oren Yaniv and John Marzulli, *Kelly Shrugs Off Judge Who Slammed Cops*, New York Daily News, December 2, 2009, available at http://www.nydailynews.com/news/ny_crime/2009/12/02/2009-12-02_kelly_shrugs_off_judge_who_rips_lying_cops.html.

^{viii} For a description of this case and the nearly \$1 million settlement, see, Cate Doty, *Bike Riders in New York Win Settlement*, N.Y. Times, October 18, 2010, available at http://www.nytimes.com/2010/10/19/nyregion/19critical.html?_r=1.

^{ix} John Marzulli, *City shells out \$35G to grandmother, Monica Gonzalez, busted as hooker*, New York Daily News, January 7, 2010, available at http://www.nydailynews.com/ny_local/2010/01/08/2010-01-08_city_shells_out_35g_to_granny_busted_as_hooker.html.

^x John Marzulli, *We fabricated drug charges against innocent people to meet arrest quotas, former detective testifies*, New York Daily News, October 13, 2011, available at <http://www.nydailynews.com/news/crime/fabricated-drug-charges-innocent-people-meet-arrest-quotas-detective-testifies-article-1.963021>.

^{xi} This case was settled during trial; for information on the settlement, see, Oren Yaniv, *Court rules that cops do use quotas, woman injured in 2006 arrest settles for \$75,000*, N.Y. Daily News, Feb. 19, 2011, available at http://www.nydailynews.com/news/ny_crime/2011/02/19/2011-02-19_court_rules_that_cops_do_use_quotas_woman_injured_in_2006_arrest_settles_for_750.html

^{xii} Larry Celona and Tim Perone, *Cops Sting Cops*, New York Post, July 30, 2010, available at http://www.nypost.com/p/news/local/brooklyn/cops_sting_cops_lyltuTeLdhKWtruJZYsdl.

^{xiii} John Marzulli, *Brooklyn cops charged with barding into sting operation, arresting a fellow officer on bogus charges*, New York Daily News, July 30, 2010, available at http://www.nydailynews.com/ny_local/2010/07/30/2010-07-30_brooklyn_cops_charged_with_barging_into_sting_operation_arresting_a_fellow_offic.html.

^{xiv} Police Reform Organizing Project, *Working Towards a More Safe and Fair City: Abolishing Quotas and Involving Communities*, September 2014, available at, https://gallery.mailchimp.com/f6b63e2555a5fd40610a66a67/files/Working_Towards_a_More_Safe_and_Fair_City.pdf.

EXHIBIT - 1

CRIMINAL COURT OF THE CITY OF NEW YORK

CERTIFICATE OF DISPOSITION

F 496846

NO FEE

Docket Number 2018kn023097 Year 18

THE PEOPLE OF THE STATE OF NEW YORK

5/12/18

vs.
 Name Damian Bullock Date of Birth/Age 27

Address 54 Fountain Avenue Bklyn, NY 11208 City/State NY Zip 11208

Date of Offense 5/12/18

Original Offense(s) 220.03, 220.50, 145.00, 260.10

Final Offense(s)

DISPOSITION
Case Was Dismissed + Sealed
160.50 C.P.L.

Date of Disposition 12/6/18Date of Sentence 12/6/18

Trial Kings E. Novillo
 Part County Judge

NO FEE CERTIFICATION

☐ Government Agency ☐ Counsel Assigned ☐ No record of attorney readily available. Defendant states counsel was assigned. SOURCE: ☐ Accusatory Instrument ☐ Docket Book/CRIMS ☐ CRC 3030 [CRC 963]

ISSUED BY:

CSO Kings 12/6/18
 Part County Date

I hereby certify that this is a true excerpt of the record on file in this Court.

Michael A. Jannone SCJA
 Court Official (Signature) Title

CRC 3039 (11/92) [CRC 225G]

INDIVIDUAL VERIFICATION

STATE OF NEW YORK, COUNTY OF KINGS:

Damian Bullock, being duly sworn and says that deponent is the

Plaintiff in the within action; that she has read the foregoing

Summons & Complaint and knows the contents thereof; that same is true to deponent's own knowledge except as to those matters therein stated to be alleged upon
information and belief and that as to those matters deponent believes them to be true.Damian Bullock

Sworn to before me this

27 day of November, 2019
Notary PublicDAVID BONILLA
Notary Public, State of New York
No. 02BO6354857
Qualified in Queens County
Commission Expires February 21, 2021

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS**

Index No.

DAMIAN BULLOCK

Plaintiff,

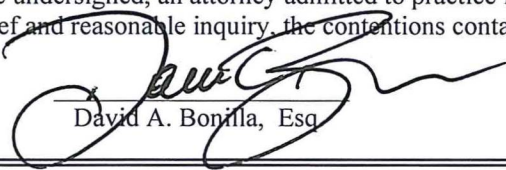
-against-

THE CITY OF NEW YORK and DETECTIVE RENE CASTELLANO

Defendants.

SUMMONS AND COMPLAINT

Pursuant to NYCRR Rule 130-1.1-a, the undersigned, an attorney admitted to practice in the State of New York certifies that, upon information and belief and reasonable inquiry, the contentions contained in the annexed paper(s) are not frivolous.


David A. Bonilla, Esq

DAVID J. HERNANDEZ & ASSOCIATES

Attorneys for Petitioners

Office and Post Office Address, Telephone

26 Court Street, Suite 2707

Brooklyn, NY 11242

(718) 522-0009

Dated: Brooklyn, New York
November 26, 2019

DAVID J. HERNANDEZ & ASSOCIATES
Attorney for
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(718) 522-0009